

26STCP00348 26STCP00348

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Case Number: 26STCP00348 Hearing Date: July 21, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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DANIEL LIFSCHITZ,

Petitioner(s),

vs.

BEVERLY

HILLS UNIFIED SCHOOL DISTRICT, et al.

Respondent(s).

Case No.:

26STCP00348

Hearing Date:

July 21, 2026

[TENTATIVE]

ORDER RE: MOTION TO COMPEL ATTENDANCE AT DEPOSITION

Petitioner Daniel Lifschitz ("Petitioner") moves to compel respondents Beverly Hills Unified School District ("District"), Judith Manouchehri ("Manouchehri"), Sigalie Sabag ("Sabag"), and Russel Stuart ("Stuart") (collectively, "Respondents") to attend deposition and produce documents.

The motion is granted.

I.

Background

1.

Factual Allegations

The petition alleges as follows.

The Petition alleges the District's Board of Education ("Board") appointed Sabag as Vice President in violation of the District's bylaws. (Pet., ¶5.) Thereafter, the Board determined to hold a new election for the same position and term, on the basis that there had been a Brown Act violation and the Board needed to cure the violation. (Pet., ¶ 7.) Respondent set on its agenda for the January 27, 2026 meeting an item to amend the bylaw provision Petitioner argues Respondent previously violated, and then thereafter to hold the election. (Pet., ¶¶ 10-11.)

On January 26, 2026, Petitioner filed the petition. On April 9, 2026, the Court largely denied Respondent's demurrer to the petition.

II.

Requests for Judicial Notice

Petitioner requests judicial notice of the following exhibits: (1) the District's video recording of the public Board meeting held December 16, 2025 (2) the District's video of the public Board meeting held January 13, 2026; (3) the District's video of the public Board meeting held January 27, 2026. Petitioner supplies internet links to videos available on the District's YouTube channel.

The videos are not official acts, legislative enactments, nor

any other judicially noticeable category. The requests are denied.

Respondents request judicial notice of the following exhibits

(1) the court reporter's transcript of the April 9, 2026 hearing in this matter (Resp. RJN 1); (2) the agenda for the Board's January 27, 2026 meeting (Resp. RJN 2); (3) the approved minutes for the Board's January 27, 2026 meeting (Resp. RJN 3); (4) the agenda for the Board's January 13, 2026 meeting (Resp. RJN 4); (5) the approved minutes for the Board's January 13, 2026 meeting (Resp. RJN 5).

The requests are granted. (Evid. Code § 452(c), (d).)

III.

Discussion

Under the Code of Civil Procedure ("CCP"), a motion to compel attendance (1) shall set forth specific facts showing good cause justifying the production for inspection of any document or tangible thing described in the deposition notice, and (2) shall be accompanied by a meet and confer declaration under CCP section 2016.040 stating facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by it or, when the deponent fails to attend the deposition and produce the documents or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (CCP §2025.450(b)(1)-(2).)

In *Beverly Hills National Bank & Trust Co. v. Superior Court*, (1961) 195 Cal.App.2d 861 ("Beverly Hills"), the court held that an order denying the taking of a deposition is the ultimate in protective orders, and that situations will seldom arise where an order that the deposition shall not be taken will be appropriate. The party objecting to the taking of the deposition has the burden of showing good cause for such an order. (Id. at 867.)

1.

Service of the Moving Papers Was Timely

Respondents contend service and filing of the motion is untimely under CCP section 1005(b).

Under CCP section 1005(b), moving papers must be served and

filed sixteen court days before a motion is to be heard. (CCP § 1005(b).) This section also provides for additional required time under certain service methods.

Respondents' counsel declares that Petitioner electronically served the motion on June 29, 2026. (Snarr Decl., ¶ 9.) Respondents provide no documentary evidence to support this assertion. Petitioner declares that Respondents were served with the motion on June 26, 2026. (Lifschitz Reply Decl., ¶ 3.) Petitioner provides a copy of the email serving the motion which shows it was sent June 26, 2026. (Lifschitz Reply Decl., Ex. V.) A proof of service filed July 2, 2026 also states Respondents were served June 26, 2026.

Considering the proof of service, declaration by Petitioner, and supplied copy of the email transmitting the motion, the Court finds the motion was served electronically on June 26, 2026. CCP section 1005(b) does not require additional time for electronic service. (CCP § 1005(b).) The instant hearing is set for July 21, 2026. Sixteen court days before July 21, 2026 is June 26, 2026.

Based on the foregoing, Petitioner timely served the moving papers on Respondents.

2.

Depositions Are Appropriate Here

Respondents contend that depositions are unnecessary in this case because Petitioner challenges official actions taken by the Board during publicly noticed meetings. Therefore, Respondents argue, the Court's review is focused on the legality of the official action, not the Board member's mental processes.

Respondents overlook the defense they raise to Petitioner's mandamus claim: namely, Respondents contend the Board actions Petitioner challenges are justified as a cure for a Brown Act violation. The Brown Act (Gov. Code § 54950, et seq.) prohibits legislative bodies of local agencies from meeting outside of noticed, open and public meetings. (Gov. Code § 54953(a).) By relying on one or more Brown Act violations to justify the Board's actions, Respondents are affirmatively asserting that unlawful unofficial or closed Board meetings occurred. As Petitioner argues, he is entitled to investigate the validity of Respondent's alleged Brown Act violation, including by deposing

members of the Board who allegedly participated in such violation.

Respondents have not met their burden^[1] to show good cause for a protective order on this basis.

3.

Privilege Issues

Respondents argue the discovery sought is protected by attorney-client privilege, the work product doctrine, and deliberative process privilege.

“The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725.)

a.

Respondents Have Not Waived Attorney Client Privilege or the Work Product Doctrine

As an initial matter, Petitioner acknowledges that he seeks material ordinarily covered by attorney client privilege and the work product doctrine. (Mot. at 18-20.) Petitioner then argues Respondents waived privilege expressly relying upon counsel’s investigation and legal advice to justify amending the District’s bylaws. Consequently, Petitioner contends, Respondents have waived attorney client privilege through “the deliberate injection of the advice” in the case. (Mot. at 19, quoting *Transamerica Title Ins. Co. v. Superior Court* (1987) 188 Cal.App.3d 1047, 1053 (“*Transamerica*”).)

Respondents contend that they have not waived privilege merely by acting on counsel’s advice. Rather, they assert, reliance must be an element of a claim or defense to create an implied waiver.

While Respondents offer no legal authority to support this position, they are correct. In *Aetna Casualty & Surety Co. v. Superior Court*, (1984) 153 Cal.App.3d 467 (“*Aetna*”), plaintiff argued that defendant waived attorney-client privilege by relying on advice of counsel as a defense to an action for bad faith denial of insurance coverage. (*Aetna* at 474.) The Court of Appeal disagreed with plaintiff. That court determined that defendant “[was] not saying that their conduct was reasonable because their counsel

opined so, but rather that their conduct was reasonable because the facts indicated that no valid claim existed.” (Id. at 475.) In other words, defendant was “prepared to defend itself on the basis of that asserted correctness rather than the mere fact of the advice.” (Ibid.) Therefore, that court determined that defendant had not waived privilege. (Ibid.)

Respondents contend they have not invoked counsel's advice as either a claim or defense but have essentially just acknowledged that they received legal advice.

In reply, Petitioner argues that Respondents have already relied on counsel's advice at the January 26, 2026 Board meeting. Petitioner further argues that Respondent cannot be trusted not to rely on advice from counsel later after the Court has already denied Petitioner here.

As to the former, Petitioner is incorrect. Respondents “relied” on the advice of counsel only in the way any client ordinarily does: Respondents' counsel gave advice, and Respondents determined to follow that advice.

As to the latter, the Court notes that Respondents' privilege remains intact at this stage because Respondents have not invoked the existence or substance of counsel's advice as a basis for establishing the legality of the Board's actions. However, Respondents are advised that if, at any later stage of this proceeding, they attempt to rely (either directly or indirectly) on counsel's investigation, legal conclusions, or advice to establish an element of a claim or defense or to justify the Board's actions, such reliance may result in an implied waiver of the attorney-client privilege and work-product protection under *Aetna*, supra, 153 Cal.App.3d 467, *Transamerica*, supra, 188 Cal.App.3d 1047, and related authority. Any later attempt to affirmatively use counsel's advice as a substantive justification for the Board's conduct would permit Petitioner to renew his request for discovery into the communications forming the basis of that justification, or to seek other remedies (e.g., ask that the Court disregard any defense premised on privileged advice.)

If Respondents will affirmatively represent to the Court now that they will not later rely on advice of counsel by, as *Aetna* describes, offering the existence and content of the advice to meet an element of a claim or defense, then Petitioner has no grounds to pierce attorney client privilege and

the work product doctrine and the matter can proceed to trial normally.

b.

Respondents Have Not Shown Deliberative Process

Privilege

Respondents argue that, under *Westly v. Superior Court* (2004) 125 Cal.App.4th 907 (“*Westly*”), the party seeking material potentially protected by deliberative process privilege must demonstrate why disclosure is sufficiently necessary to outweigh the interest underlying deliberative process privilege. (Opp. at 12, citing *Westly* at 918-920.) Respondents argue that “Petitioner performs no meaningful balancing at all. Instead, he simply asserts that the requested testimony is relevant.” (Opp. at 12.)

Respondents misstate the burden. First, Respondents cite to nonexistent pages from *Westly*. Second, *Westly* does discuss deliberative process privilege. (See generally *Westly*.) Finally, case law addressing deliberative process privilege states the reverse. To successfully invoke deliberative process privilege, Respondents must show the sought material would expose the District’s decision-making process “in such a way as to discourage candid discussion within the agency and thereby undermine the agency’s ability to perform its functions.” (*State of California v. Superior Court* (2024) 101 Cal.App.5th 214, 235, 240; *Times Mirror Co. v. Superior Court* (1991) 52 Cal.3d 1325, 1342; *Dudman Communications Corp. v. Department of Air Force* (D.C. Cir. 1987) 815 F.2d 1565, 1568.)

Just as Respondents accuse Petitioner, Respondents make no attempt to meet this burden. Respondents have not met their burden to show deliberative process privilege applies.

In sum, Respondents have not shown deliberative process privilege applies, but Petitioner has not shown Respondents waived attorney client privilege or the work product doctrine.

4.

Narrowing Requests

Respondent seeks to narrow the deposition and document requests.

a.

Person Most Qualified Topic 13

Respondents argue that Topic 13 to Petitioner's subpoena to the District's Person Most Qualified is not reasonably particular. Respondent contends this request "effectively incorporates every interrogatory, every request for production, and every factual issue in the litigation." (Opp. at 14.)

Topic 13 covers "[i]nformation responsive to the discovery requests propounded upon BHUSD in this action." (Lifschitz Decl., Ex. I.) Respondents do not provide or describe Petitioner's prior discovery. Without some showing of what the discovery requests propounded upon the District include, the Court cannot conclude that Topic 13 is not reasonably particular. Respondents, therefore, have not met their burden.

b.

Deposition Document Requests

Respondents argue that the deposition document requests are overbroad and cumulative. Specifically, Respondents argue the document requests duplicate requests for production already served in this action.

As noted above, Respondents have not provided the prior requests for production. Nor have Respondents given the Court any indication as to which document requests were duplicative of prior requests. Accordingly, Respondents have not shown that Petitioner seeks duplicative discovery.

c.

Deposition Content

Respondents request that the Court limit testimony to specifically identified, nonprivileged factual matters relevant to the Petition. The Court denies Respondents' request. Respondents may assert privilege if privileged matters arise at the deposition.

5.

Sanctions

If a motion to compel attendance is granted, the court shall also impose a monetary sanction under Chapter 7 of the CCP (commencing with section 2023.010) against the deponent or the party with whom the deponent is affiliated, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §2025.450(g)(1).)

Here, Petitioner did not notice or argue sanctions, so the Court does not award them.

IV.

Conclusion

The motion is GRANTED. Respondents shall produce the District's Person Most Qualified ("PMQ") for deposition, and Respondents Manouchehri, Sabag, and Stuart shall each appear for deposition. The District and the individual Respondents shall make themselves available and shall appear for deposition, and shall produce all documents described in the corresponding deposition notices, within ten (10) calendar days of the date of this Order.

The parties shall meet and confer promptly to select mutually agreeable dates within the ten-day compliance period. If Respondents do not meaningfully engage in meeting and conference to do so, Petitioner may unilaterally set a date with at least five days' notice of the deposition (notice extended per Code if by other than personal service). Respondents are ordered to appear for the deposition at a date, time, and location to be noticed by Petitioner.

Date: July 21, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Respondents also assert the burden lies with Petitioner to demonstrate the discovery they seek is necessary. Not so. The party objecting to the taking of the deposition has the burden of showing good cause for an order that the deposition shall not be taken. (Beverly Hills, *supra*, 195 Cal.App.2d at 867.) Even so, Petitioner has established that the discovery he seeks is necessary.